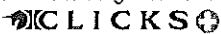


Clicks Retailers (Pty) Ltd

Reg No: 2000/013054/07 VAT Reg No: 4520189236

Trading in the name of 

CONFIDENTIAL

Wilbur Matthee

By Email

23 November 2016

Dear Wilbur,

CONTRACT OF EMPLOYMENT

I am pleased to confirm your appointment as a **Nursing Practitioner** with Clicks Retailers (Pty) Limited ("the Company"), which forms part of the Clicks Group ("the Group"), subject to your registration as a Professional Nurse with the South African Nursing Council (SANC).

You will be based at the **Clicks The Paddocks Clinic** or such other place or places as the Company may decide from time to time (based on operational requirements) and you will form part of the Operations department, reporting to the Pharmacy Manager.

Our Company's talent strategy is to employ *customer obsessed people with a confident, 'can do' attitude, who are proud and professional*. This strategy is underpinned by our Company values, detailed in our code of conduct.

PARTICULARS OF EMPLOYMENT

Your employment with the Company is subject to, and conditional upon, your acceptance of the terms and conditions set out in this contract. This contract also incorporates your Particulars of Employment. These may be updated and substituted by the Company from time to time.

DURATION

The commencement date of your employment with the Company is **01 January 2017** and your employment shall continue indefinitely unless or until terminated in terms of the "Termination of Employment" provisions below.

DUTIES

You shall carry out all the tasks and duties set out in the job description and within the legal scope of practice as outlined by the South African Nursing Council, as well as all the tasks and duties normally associated with and ancillary to this position.

As an employee, you confirm that you are capable and competent to perform the duties for which you have been employed. You undertake to comply with all lawful and reasonable instructions given to you by the Company and to conform to all statutory and other obligations binding upon the Company.

You further agree to perform any other duties that may reasonably be expected of you in relation to this position. The duties and any other requirements of your appointment will be explained to you by your Line Manager.

Nursing Practitioner Contract of Employment

Initial here

National Stores Support Centre
Cnr. Searle & Pontac Streets, PO Box 5142, Cape Town, 8000, South Africa
Telephone: +27 (0)21 460 1911 Fax: +27 (0)21 461 8221

Directors: DA Kneale (British), M Fleming • Company Secretary: MF Welz

HOURS OF WORK

As a permanent full time employee your ordinary working hours are **forty (40) hours, six (6) days per week (Monday – Saturday)**, which excludes an unpaid lunch break of thirty (30) minutes per day. You hereby agree to the reduction of the daily lunch break from one (1) hour to thirty (30) minutes. The hours per day that you will be required to work will be communicated to you from time to time by your manager.

The Company reserves the right to determine your daily working hours and to change your hours of work as necessitated by operational requirements. You may further be required and hereby agree to work in excess of ordinary working hours. Payment, if applicable, for overtime worked by you shall be in accordance with the applicable overtime policy and law, as may be amended from time to time.

Given the nature of the Company's operations, you will be expected to work any reasonable hours as may be necessary for the performance of your duties and you hereby agree to do so.

ATTENDANCE

You are required to record your attendance at work by registering your arrival and departures on the clocking system, or in the absence of a clocking system, by signing an attendance register.

ANNUAL GUARANTEED PAY

Your Annual Guaranteed Pay (AGP) is **R 261,658.00** (Two hundred and sixty one thousand, six hundred and fifty eight rand), which will be paid to you in twelve (12) equal monthly instalments for the duration of your employment. The monthly cash component of your AGP (less deductions) will be paid in arrears into your nominated bank account by no later than the last day of each month of your employment.

The Company may deduct from your remuneration any amounts due in relation to PAYE, UIF or as required by any other law, court order or written agreement applicable from time to time. If, at any time, you owe any amounts to the Company, you hereby authorise the Company to deduct such amounts from, and/or set off such amounts against any amount owed to you by the Company.

The implementation of the Company's annual salary review date is 01 September and is based on your individual performance and position in pay range. Should you commence employment on or after 01 June, your first annual salary review shall be in September of the following year.

COMPANY PERFORMANCE BONUS SCHEME

In addition to your AGP, you qualify for participation in the Company Short Term Incentive Scheme (subject to the provisions of the Scheme Rules, as amended from time to time), details of which are available from your HR or Line Manager.

ANNUAL LEAVE

Your annual leave entitlement is eighteen (18) working days per twelve (12) months of employment (the annual leave cycle) which accumulates on a monthly basis. Annual leave is to be taken subject to operational requirements of the business and must be applied for and approved in advance by your Line Manager.

In accordance with the Basic Conditions of Employment Act the company is required to pay out statutory annual leave on termination of your employment. Please note that the maximum number of days of statutory annual leave that you are entitled to accumulate and which could be paid out to you on termination shall not be in excess of your valid statutory leave. Non-statutory leave will not be paid out to you on the termination of your employment.

SICK LEAVE

In the event of illness, you are entitled to a maximum of up to thirty six (36) days of paid sick leave during every 36 (thirty six) months of continuous employment. However, during the first 6 (six) months' employment, you shall only be entitled to 1 (one) working day's paid sick leave for every 26 (twenty-six) days worked.

In terms of the Time and Attendance policy, if you are unable to report for work, you are required to contact your Line Manager within two (2) hours of your normal work commencement time to inform him/her that you will not be reporting for work. In cases of illness, you are also required to submit a valid medical certificate from a registered health practitioner to support your application for sick leave in accordance with the relevant Company policy.

The Company views the abuse of sick leave provisions in the most serious light and transgressions will be subjected to the disciplinary or incapacity procedure, depending on the circumstances.

OTHER LEAVE

Your other leave entitlements (family responsibility leave, maternity leave) are derived from the provisions of the Basic Conditions of Employment Act, the Sectoral Determination 9 and the Company policies (as may be amended from time to time).

SUBSCRIPTION

The Company will pay your subscription for membership with the South African Nursing Council and any other professional body which you, as a Professional Nurse, are required to belong to.

MEDICAL AID MEMBERSHIP

You are required to join the Company's Medical Aid Fund (currently provided by Horizon Medical Scheme), unless you are and continue to be either a member of Discovery Health or your spouse/partner's medical aid for the duration of your employment. The payments that are made to the medical aid on your behalf will cease upon the termination of your employment for any reason whatsoever (including your retirement).

In terms of the prevailing Company policy medical aid membership is compulsory immediately on commencement of service. Please complete the appropriate application form and return it to the contact person (or, if you are a member of your spouse/partner's medical aid, please provide supporting documentation in this regard).

RETIREMENT FUND

You are required to be a member of one of the Clicks Group Retirement Funds. The rules of the Fund will be provided to you by your HR Manager. The Company's current retirement age is 63 years.

TRUST RELATIONSHIP

You are required to be honest throughout the course of your employment relationship and warrant that you have been honest during the recruitment and selection process. Material misrepresentation is regarded as gross misconduct and could lead to dismissal.

You agree to participate in any investigative processes required by the Company (including but not limited to interviews, forensic investigations and polygraph tests) where these processes are used to establish dishonesty or deception and are necessary in the operational interest of preventing and detecting theft.

WARRANTIES

You hereby warrant that –

- all information supplied to the Company detailing your experience and qualifications and all representations made by you during the interview and appointment process are true and accurate;
- you do not have a criminal record and you are not aware of any investigations with regard to any crime or offence that are pending against you;
- you are a South African citizen or hold a valid work permit; and
- you have resolved any existing impediment pertaining to your acceptance of this appointment.

You hereby indemnify the Company, its holding company and all subsidiaries of its holding company (the "Indemnified Parties") against all claims, losses, damages, expenses and costs (including legal costs on the scale as between attorney and own client) which the Indemnified Parties may suffer or incur in connection with your breach of any of the aforementioned warranties.

You acknowledge that if it is found that you have made any misrepresentations to induce this contract, it may be declared null and void by the Company at its election.

TERMINATION OF EMPLOYMENT

This contract of employment may be terminated by either party giving at least **two (2) calendar months' written notice**, to be given on or before the 1st day of the month. In the event that you neglect, fail or refuse to serve your contractual notice period, you agree to pay the Company in lieu of notice.

The Company and the employee may agree (in writing) to waive or reduce the notice period - in which event notice pay will not be paid or will be pro-rated in accordance with the reduced notice period.

Unless otherwise agreed in writing with the Company, your employment shall automatically terminate at the end of the month in which you reach the normal retirement age.

CONFIDENTIALITY

For the purposes of this clause Confidential Information shall mean all information (of any nature and in any form) belonging to the Company, which is not publicly available in the ordinary course of business, including any strategic plans, information of a commercial, sourcing, operational, business or financial nature and all intellectual property rights owned by the Company.

You acknowledge that, by virtue of your association with and position in the Company, you will come into possession of and will have access to the Confidential Information of the Company. You further acknowledge that you will be exposed to the specialised nature of the Company's business and you will develop a close business relationship with third parties who conduct business with the Company.

If you disclose, communicate or use, or permit the use, disclosure or communication of the Confidential Information to any person, the proprietary interests of the Company to its Confidential Information will be prejudiced. You accordingly undertake that you will not during your employment with the Company or at any time after the termination thereof:

- use for your own benefit, or for the benefit of any other person, the Confidential Information of the Company; and
- disclose the Company's Confidential Information to any person without the Company's prior written consent; and

- upon the termination of this contract for any reason, retain any copies in any format of the Company's Confidential Information, including any extracts therefrom; and
- take advantage of any personal relationship/s of confidence established with any customer, supplier or service provider of the Company during your employment with the Company.

All Confidential Information received by and disclosed to you during your employment with the Company remains the property of the Company and shall be returned by you to the Company on the termination of your employment or on demand.

INTERCEPTION AND MONITORING OF ELECTRONIC COMMUNICATION FACILITIES

The Company makes communication facilities including telephones, computer equipment, e-mails and internet access available to you for conducting its official business. You consent to the interception and monitoring of any of your communications including but not limited to any electronic communications which you may send or receive using the equipment or property of the Company or during the course and scope of your employment by the Company.

COMPANY RULES AND PROCEDURES

You are required and hereby agree to comply with all Company rules and procedures (details of which will be available to you on commencement of your employment). You will be bound by any variation, addition to or amendment of the Rules and Procedures as notified by the Company from time to time.

A breach of any of the Company's rules and procedures may lead to disciplinary action. You agree and undertake to submit yourself to a body search as and when required to do so by the Company and to submit your personal belongings and/or vehicle for a search if required to do so.

GENERAL

This appointment is contingent on you providing proof of your South African citizenship as well as proof of your registration as a South African tax payer. You will also be required to provide proof of valid professional registration applicable to your position.

Your employment will be governed by the provisions set out in the following documents:

- Code of conduct;
- Declaration of interest; and
- Group policies and procedures.

Each provision of this contract is severable: if at any time any provision is illegal, invalid, defective or unenforceable for any reason, the remaining provisions shall continue to be of full force and effect.

No variation, amendment, addition to or cancellation of any of the terms and conditions of this contract will be of any force or effect unless reduced to in writing and signed by you and the Company. By your signature you confirm that no promises, warranties, representations or undertakings have been made by the Company other than those contained in this contract.

ACCEPTANCE

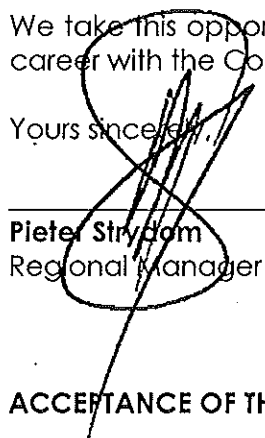
Kindly sign this contract in the space provided and return it to the Company representative indicating your acceptance of these terms and conditions as set out herein.

For record purposes, it will be necessary for you to provide us with information relevant to this appointment, your employment with the Company and your benefit selection. Your HR Manager will provide a list of required information and documents for you to complete upon acceptance of

this contract. It will be your responsibility to complete and return this information and documentation to your HR Manager prior to your commencement date, unless otherwise agreed.

We take this opportunity to welcome you to the Clicks Group and to wish you every success in your career with the Company.

Yours sincerely,



Pieter Strydom
Regional Manager



Nina Rix
HR Manager

ACCEPTANCE OF THESE TERMS AND CONDITIONS:

I..... (Full Name), I acknowledge that I have received and read a copy of this contract of employment, incorporating my particulars of appointment. By my signature hereunder, I confirm and agree that I have read, understood and accepted the terms and conditions of employment contained herein.

SIGNATURE

DATE

Clicks Group (Pty) Ltd
Cnr Pontac and Searle Street
Woodstock, Cape Town

Private and Confidential

Date: 15.11.2016

Mr Wilbur Matthee

Clicks (SA)

Annual Guaranteed Pay - Package Structure

In terms of our total rewards strategy, you have a number of benefit options available to your job grade (H13) and certain elements of your annual guaranteed pay (AGP) may be adjusted to best meet your needs.

Please be aware that your package structure does not include any performance bonuses that you may be entitled to, which are additional to your AGP.

This package structure provides an estimate of the value of your benefit allocations & net salary, and has been prepared for illustrative purposes only. The package structure calculator cannot take into account fluctuations in your annual income which may result in your actual tax (based on your actual annual income) differing from the estimated tax indicated.

In the event that your actual tax / the value of benefit amounts differs from the values provided, the actual tax and benefit amounts will prevail.

Yours sincerely,

The Clicks Group

Private and Confidential

Mr Wilbur Matthee
Clicks (SA)

Annual Guaranteed Package 261,657.96

If agreed, the following is an estimation of your monthly guaranteed pay:

Monthly Salary		
Structure	75 %	21,804.83
Pensionable Salary		16,353.62
Non-Pensionable Salary		3,864.91
Company Fund Contributions		
Neg Provident		1,586.30
Deductions		
Tax		2,299.91
UIF		148.72
E'ee Fund Contribution		1,226.52
E'ee MA Contribution		1,028.00
Total Gross		20,218.53
Total Deductions		4,703.15
Total Net		15,515.38

I acknowledge that this agreement correctly reflects the components of my remuneration as agreed with my Employer. I accept that my remuneration and any fringe benefits offered by the employer in terms of this agreement will be subject to taxation as determined by applicable legislation. Further, I agree that any changes to the value of the Benefit fund contributions or deductions will result in my package structure being adjusted accordingly.

Employee Signature:		
Name	Signature	Date
Package Structure Authorised by:		
Name	Signature	Date
		